

Court No. - 40

Case :- WRIT - C No. - 44254 of 2008

Petitioner :- Sarvottam Rolling Mills Pvt. Ltd. And Another

Respondent :- Managing Director Pvvnl And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

By means of this writ petition, the petitioners had challenged the demand notice dated 25.7.2008 which was issued by the Executive Engineer, Electricity Urban Distribution Division-I, Town Hall, Muzaffar Nagar.

It is the contention of learned counsel for the petitioners that not only was the demand notice challenged but Clause 4.20 of the Electricity Supply Code, 2005, as was framed by the U.P. Electricity Regulatory Commission under which the demand notice was sent, was also challenged by means of this writ petition. He submits that by an order of this Court dated 21.3.2017 passed in Writ-C No.30898 of 2016 (M/s. Dev Prayag Paper Mill (Pvt.) vs. State of U.P. & Ors.) which was decided along with other petitions, the Court had found that the provisions of Clause 4.20 were not to be interfered with and the writ petition was dismissed.

Under such circumstances, the present writ petition also is being dismissed.

Order Date :- 20.9.2022

GS

(Ajit Singh, J.) (Siddhartha Varma, J.)